

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING CHAPTER 8.72, PRIVATE DISPLAYS ON PUBLIC PROPERTY, TO PROHIBIT THE UNAUTHORIZED USE OF PUBLIC PROPERTY FOR SPECIFIED PRIVATE DISPLAYS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 8.72, Private displays on public property, of Title 8, Health and Safety, is hereby created to read:

Chapter 8.72 – PRIVATE DISPLAYS ON PUBLIC PROPERTY

8.72.010 – Purpose – Authority – General provisions.

A. The purpose of this chapter is to prohibit private displays on public property that are not otherwise expressly regulated by this code or other law.

B. The provisions of this chapter are pursuant to authority granted cities and towns under Wyo. Stat. Section 15-1-101, et. seq.

C. The Cheyenne compliance department shall have primary responsibility for enforcement of this chapter but may request assistance from the police department as necessary. The department of public works shall have primary responsibility for any removal of a private display required by this chapter and shall maintain an accurate record of the cost of removal.

8.72.020 - Prohibitions.

A. No person shall erect a display on any public right-of-way or property of the city of Cheyenne for artistic, memorial or other purposes except as otherwise permitted by law or as expressly authorized by the city.

B. In addition to the penalty provided in subsection (C) of this section, any person violating this chapter shall remove the display within seven (7) days of being requested to do so. Notice of the request to remove the display shall be provided by placing written notice on or near the display. If the display is not removed within seven (7) days of the written notice, the display shall be deemed abandoned property, and the city shall remove the display not later than thirty (30) days after providing written notice.

C. Any person violating the provisions of this chapter shall be subject to a fine not to exceed seven hundred fifty dollars (\$750.00) and any costs incurred by the city for removal of the display.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared

unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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